

Dr. Ashok Kumar Sharma & Another v. State of U.P. & 4 Others

Allahabad High Court · Division Bench · 23 February 2024 · 2024:AHC:31947-DB · WRIT - C No. 5548 of 2024 · **Writ petition disposed of (connection refused at this stage; liberty if the eviction decree is set aside/stayed)**

HEADNOTE

A tenant is an 'occupier' under Clause 2(oo) of the U.P. Electricity Supply Code, 2005, with a statutory right to apply for a connection (on an indemnity bond, Clause 4.4) and cannot be denied supply merely for want of the landlord's NOC (Dilip v. Satish; Anand Kumar). But 'occupier' means a person authorised to occupy the premises; a tenant against whom an unstayed decree of eviction operates cannot be recognised as authorised to occupy, and a connection may be refused at that stage — with liberty to apply if the decree is later set aside, recalled or stayed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::2(oo)

'Occupier' requires authorised occupation — tenant under an unstayed eviction decree

QUESTION

Is a tenant against whom an unstayed decree of eviction operates an 'occupier' entitled to a fresh connection under the Code?

HOLDING

A tenant is ordinarily an 'occupier' (Clause 2(oo)) entitled to apply for a connection on an indemnity bond and cannot be denied supply merely for want of the landlord's NOC. But 'occupier' means a person authorised to occupy; a tenant faced with an unstayed eviction decree is not so authorised, and the court declined, in its discretion under Article 226, to direct a connection at that stage — with liberty to apply if the decree is set aside, recalled or stayed. ¶ 10-17

LIMITING FACTS

An ex parte eviction decree (19.4.2018) against the tenants was pending execution with no stay; outstanding dues exceeding Rs. 3,00,000 stood on the old connection.

QUALIFIER

Liberty reserved to apply for a connection if the eviction decree is set aside, recalled or stayed.

PRINCIPLE TAGS

occupier-must-be-authorised The right of a tenant/occupier to a connection under the Code presupposes authorised occupation; it does not extend to a person against whom an unstayed eviction decree operates. (Qualifies the tenant-occupier entitlement recognised in Anand Kumar / SCJ-006.) Lead authorities: *Anand Kumar v. State of U.P.* [163340936]. ¶ 10-16

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ULTIMATE FATE OF THE EVICTION LITIGATION

The Court declined to speculate on the outcome of the pending execution/recall proceedings, deciding only that at this stage the tenants are not authorised occupiers. ¶ 15

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Dilip (Dead) through LRs. v. Satish & Others</i> 2022 LiveLaw (SC) 570 Supreme Court	Electricity is a basic amenity of which a person cannot be deprived; it cannot be declined to a tenant for the landlord's failure/refusal to issue an NOC — all the supply authority examines is whether the applicant is in occupation.	Distinguished — it does not lay down that a connection must be granted to a tenant irrespective of all other facts (here, an unstayed eviction decree). ¶ 7, 10	Petitioner	Distinguished

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Anand Kumar v. State of U.P.</i> 2023 (3) ADJ 668 (DB) [163340936] Allahabad High Court (DB)	A tenant, being an 'occupier' under Clause 2(oo), has a statutory right to apply for and obtain a connection on fulfilling the Code's conditions (mainly an indemnity bond). [SCJ-006 in this corpus.]	Distinguished — ratio held not squarely applicable, since it presupposes authorised occupation, absent here given the unstayed eviction decree. ¶ 11-14	Petitioner	Distinguished

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.